

borne by the declarant. However, where the declarant disputes the result of analysis, the unused sample portions are not to be returned until all means of appeal against the decision taken by Revenue on the basis of the results of the analysis or more detailed examination have been exhausted (Article 242 IA).

7.2.10 Release of goods

Goods are to be released without waiting for the results of analysis unless there are grounds for not doing so, and provided that, where a Revenue debt has been, or is likely to be, incurred, the duties have been accounted for or secured (Article 194(1) UCC).

7.2.11 Quantity declared

Quantities taken as samples are not to be deducted from the quantity declared (Article 240(5) IA).

7.2.12 Tariff Classification

The following material is either exempt from or not required to be published under the Freedom of Information Act 2014.

[...]

7.2.13 Disposal of unclaimed samples

Where samples taken for testing or determination of liability to duty cannot be returned to the importer for any reason e.g. the refusal or failure of the importer to collect them, they are in the absence of any special directions to the contrary to be disposed of as follows:

- If of commercial value they are to be sent to the State Warehouse for disposal.
- If of no commercial value they are to be destroyed (Article 198 UCC).

The Sample Register and the declaration are to be noted with the method of disposal and any receipt annexed to the declaration.

Health and Safety Notice

Before hazardous or dangerous samples are disposed of, directions and advice should be sought from the State Laboratory because of health and safety dangers. Staff should also be alert to the possibility that improper disposal could also lead to damage to the environment.